

IN THE [COURT HAVING JURISDICTION IN THIS MATTER – CRIMINAL, CIRCUIT OR GENERAL SESSIONS COURT; CONFIRM FROM YOUR OWN RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN RECORD] COUNTY, STATE OF TENNESSEE

STATE OF TENNESSEE,
Plaintiff,

v.

JOHN DOE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR EXPUNCTION OF AN ARREST RECORD WHERE THE COURT HAS NO HISTORY OF THE ARREST, PURSUANT TO T.C.A. § 40-32-109

STATUTORY AUTHORITY

T.C.A. § 40-32-109(a) – A person whose arrest record exists, but for whom the court with jurisdiction over the offence for which the person was arrested has no history of the arrest within the court's records, may petition that court. The subsection uses the permissive 'may petition'. Upon filing, the clerk serves the petition on the district attorney general for that judicial district.

T.C.A. § 40-32-109(b) – Both the petitioner and the district attorney general may file evidence with the court.

T.C.A. § 40-32-109(c) – The clerk's office searches the court's records and certifies to the court whether there is any history of the arrest.

T.C.A. § 40-32-109(d) – The court reviews the clerk's certification and all evidence and may enter the order if it finds there is no history of the arrest within the court's record.

T.C.A. § 40-32-109(e) – A person petitioning under the section must be charged the appropriate clerk's fee.

T.C.A. § 40-32-109(f) – Applies the chapter's restoration effect: the petitioner is entitled to have all public records destroyed, is restored in contemplation of law to the status occupied before the arrest, must not suffer adverse effects or collateral disabilities by virtue of the offence, and is not guilty of perjury for failing to acknowledge the arrest in response to any inquiry.

T.C.A. § 40-32-102(c)(1) – Expressly exempts the court from submitting a certificate where the relief is granted pursuant to this section.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court having jurisdiction in the previous action in Sample County (synthetic sample venue), State of Tennessee, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Tennessee.

II. PARTIES

3. Petitioner is JOHN DOE, whose address is 1000 Sample Street, Nashville, TN 37203.

4. Plaintiff is the State of Tennessee.

III. FACTS AND CASE HISTORY

5. On or about 05/26/2021, Petitioner was charged with Arrest recorded on Petitioner's criminal history for which the court has no history within its records (synthetic sample arrest) by Sample County Sheriff's Office (synthetic).
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. The matter was resolved with the following disposition: No court file exists; the arrest appears on the criminal history only (synthetic sample disposition). [DISPOSITION DATE TO BE CONFIRMED]
8. The offense grade was: Not stated – no charge was docketed (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for expunction on the following basis: expunction under T.C.A. § 40-32-109 (Petitioner states an arrest record exists but the court with jurisdiction has no history of the arrest within its records).
10. Petitioner states an arrest record exists on Petitioner's criminal history for the arrest described above (synthetic sample answer).
11. Petitioner states Petitioner was never arraigned and never appeared before this Court on that arrest, and knows of no court file (synthetic sample answer).
12. Petitioner asks the clerk to search this Court's records and certify whether there is any history of the arrest, and asks this Court to make the finding the section requires on that certification and the evidence submitted. Petitioner makes no assertion about what the clerk's search will show.
13. Petitioner understands that the appropriate clerk's fee applies to this Petition and that this section contains no waiver provision.
14. State control number: [STATE CONTROL NUMBER – READ FROM YOUR OWN CRIMINAL HISTORY AND ENTER IT HERE BEFORE FILING].

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the expunction of all public records of the arrest described in this Petition in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to remove and destroy all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
1000 Sample Street, Nashville, TN 37203

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

ATTACHMENTS

Attachments submitted with this petition:

- [ANY DOCUMENT THE PARTICIPANT CHOOSES TO FILE IN SUPPORT – PARTICIPANT ENCLOSES COPIES ONLY]

Prepared by petitioner using LegalEase RCAP. This is not an official court form.